

# Jyoti vs State Of Uttarakhand Through Secretary ... on 15 February, 2013

IN THE HIGH COURT OF UTTARAKHAND AT NAINITAL

Criminal Writ Petition no. 155 of 2013  
With  
Urgency Application no. 874 of 2013  
Stay Application No. 825 of 2013

1. Jyoti, D/o Makeswar Singh  
2. Pratibha, D/o Makeswar Singh  
Both R/o 111 Satya Niketan opposite Venkateshwara  
College, Moti Bagh, New Delhi  
..... Petitioners

Versus

1. State of Uttarakhand through Secretary Home  
Secretariat Complex, Dehradun  
2. Station House Officer, P.S. Mussoorie  
District Dehradun  
3. Smt. Mamta, W/o Sri Alok Kumar  
D/o Sri Puran Singh Manyura  
R/o Village Kyarkuli, P.O. Kalri Mussoorie  
District Dehradun  
..... Respondents

Mr. Karan Anand, Advocate, present for the petitioners.  
Mrs. Mamta Bisht, A.G.A., present for the State.

Hon ble Prafulla C. Pant, J.

Urgency application no. 874 of 2013 is allowed.

2. Heard.

3. By means of this writ petition moved under Article 226 of Constitution of India, the petitioners have sought quashing of the first information report dated 04.06.2012, registered as Crime No. 21 of 2012, relating to offence punishable under section 498A IPC and one punishable under section 3/4 of Dowry Prohibition Act,

1961, at Police Station Mussoorie, District Dehradun.

4. Learned counsel for the petitioners submitted that both the petitioners are sisters in law (NAND) of the respondent no. 3 Mamta (complainant). It is pleaded that due to the matrimonial discord between respondent no. 3 and her husband, in the impugned first information report petitioners have been implicated falsely by the complainant which is abuse of process of law. It is further pointed out that the impugned FIR is counter blast to the petition filed by the brother of the petitioners under section 9 of Hindu Marriage Act against his wife (respondent no. 3 Mamta).

5. Admit the petition.

6. Learned counsel for the State prays for, and is allowed four weeks' time to file the counter affidavit.

7. Having heard learned counsel for the petitioners, and learned counsel for the State, and after going through the papers on record, as an interim measure, it is directed that petitioners namely Jyoti and Pratibha shall not be arrested in connection with Crime No. 21 of 2012, registered at Police Station Mussoorie, District Dehradun, during investigation provided that they cooperate with the investigating agency. (Stay application no. 825 of 2013 stands disposed of).

8. List after four weeks.

Parul

(Prafulla C. Pant, J.)  
Vacation Judge  
15.02.2013